

05 — Written agency outcomes disagree on whether the correspondent was a Commonwealth employee

AI evidence synthesis · 26 September 2026 · Finding aid, not a court.

05 — Written agency outcomes disagree on whether the correspondent was a Commonwealth employee

Executive proposition

The archive's mandate requires that contradictions be shown, not smoothed. On the opened paper, agencies did not speak with one voice about employment. Comcare, recording an NDIA statement, was not satisfied the correspondent was an employee under the SRC Act. APRA wrote that correspondence did not indicate a current or former public official and would not be treated as a PID. The Federal Court authorised officer wrote that, on the information provided, he was satisfied of DSS employment — and then refused allocation because he was not satisfied the disclosure was made by a public official. Those sentences exist. They are not the same sentence.

Scope

This essay compares opened agency text on the employment / public-official question. It does not decide the legal question. Files: Comcare 26 May 2021; APRA 5 November 2021 as forwarded in the 13 November 2021 PDF; Tredwell 27 March 2023. The NDIS Quality and Safeguards Commission file 2021-06-03-NDIS-Quality-Safeguards-Commission-not-an-employee.pdf is named in the catalogue; this scan did not rest a finding on that file's unread body.

Documentary findings

Comcare, 26 May 2021: "Based on the available evidence, Comcare is not satisfied you are an 'employee' in accordance with the SRC Act." The letter records NDIA's 10 May 2021 statement that the person is not an NDIA employee, is not paid wages with tax and superannuation deducted, and is not subject to the APS Code of Conduct. It records the correspondent's contrary emails.

APRA Info, 5 November 2021, quoted inside 2021-11-13-APRA-reject-Whistleblower-Status.pdf (<https://wezzo72.github.io/Barrandodger/docs/official-drive/2021-11-13-APRA-reject-Whistleblower-Status.pdf>): "Having considered the issues raised in your correspondence, we do not consider the matters to be within the remit of APRA and will not be treating the matter as a public interest disclosure or whistleblower complaint for the purposes of the Public Interest Disclosure Act 2013 or the Corporations Act 2001, respectively." A further APRA paragraph in the same chain states that a public interest disclosure is a disclosure by a public official of disclosable conduct by or within a Commonwealth agency, and that "Your email and past correspondence does not indicate that you are a current or former public official. Accordingly this matter is not being treated as a Public Interest Disclosure by APRA under the Public Interest Disclosure Act 2013."

Tredwell, 27 March 2023: "On the information you have provided me, I am satisfied that you are, or were, an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate." Later: "As I am not satisfied that the disclosure ... was made by a public official or provided to an authorised recipient under the PID Act, there is no reasonable basis on which I can decide that the disclosure is an internal disclosure."

The AAT covering letter of 12 July 2023 affirms Comcare's decision. That is further official paper on the compensation-employment path, not a reconciliation of the PID-employment path.

Primary evidence

- Comcare determination (<https://wezzo72.github.io/Barrandodger/docs/official-drive/McLean-determination-Comcare-rejection-26May2021.pdf>)
- APRA PDF, 13 November 2021 compilation (<https://wezzo72.github.io/Barrandodger/docs/official-drive/2021-11-13-APRA-reject-Whistleblower-Status.pdf>)
- Tredwell letter in Backup (<https://github.com/wezzo72/Backup/blob/main/client/public/documents/2023-03-27-federal-court-final-assessment-dr-rich-mclean.pdf>)
- AAT covering letter (<https://wezzo72.github.io/Barrandodger/docs/official-drive/ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf>)

Corroboration

The disagreement is internal to the opened agency paper. No second source is required to see that the sentences differ. Repeating one sentence on archive covers while omitting the others is not corroboration; it is selection.

Contrary evidence

Each letter is confined to its statute: SRC Act employment for Comcare; PID Act public-official and authorised-recipient tests for APRA and the Federal Court authorised officer. Different statutes can yield different results without any of the letters being forged. The contradiction is therefore a contradiction of outcomes on adjacent questions, not proof that one letter is false.

The Tredwell employment sentence is expressly "on the information you have provided me." It is not a Department of Social Services payroll confirmation. A later DSS position, if one exists in the AAT reasons as Exhibit R3, was not re-opened as a primary PDF in this pass.

What the record establishes

- A — Comcare recorded that it was not satisfied of SRC Act employment, and recorded an NDIA statement that the person was not an NDIA employee.
- A — APRA recorded that it would not treat the matter as a PID or Corporations Act whistleblower complaint, and that correspondence did not indicate a current or former public official.
- A — Tredwell recorded satisfaction of DSS employment on the information provided, and separately recorded that he was not satisfied the disclosure was made by a public official or to an authorised recipient.
- A — These written outcomes can be compared by any reader. That comparison is what the mandate means by examination.

What the record does not establish

It does not establish a single legal answer to "was this person a public official?" It does not establish a conspiracy to produce inconsistent letters. Inconsistency can be produced by different tests, different evidence, and different dates.

Unresolved questions

Whether DSS has an inspectable record of employment or of no employment was not settled from a DSS-authored PDF in this scan. Whether s 30 of the PID Act (contracted service providers) was correctly applied by any officer is a legal question, not a document fact.

Evidence classification

Each quoted sentence: A as a sentence in an official letter. Employment as an all-purpose fact: unresolved. Archive claims that the Federal Court "confirmed" employment or protected-disclosure status: E, and in conflict with the allocation refusal.

Provenance

Opened PDFs listed above, 26 September 2026.

Verification links

- Comcare PDF (<https://wezzo72.github.io/Barrandodger/docs/official-drive/McLean-determination-Comcare-rejection-26May2021.pdf>)
- APRA PDF (<https://wezzo72.github.io/Barrandodger/docs/official-drive/2021-11-13-APRA-reject-Whistleblower-Status.pdf>)
- Tredwell PDF (<https://github.com/wezzo72/Backup/blob/main/client/public/documents/2023-03-27-federal-court-final-assessment-dr-rich-mclean.pdf>)

Conclusion

A third party can conclude that the public paper does not contain a single, consistent official finding of Commonwealth employment, and that at least two agencies declined to treat the correspondent as a PID public official while a third recorded a limited, information-based employment sentence and still refused allocation. The mandate is served by publishing all of those sentences together. It is not served by quoting only the sentence that helps.

Machine provenance

AI EVIDENCE SYNTHESIS — MANDATE SCAN

Corpus opened: <https://wezzo72.github.io/Barrandodger/index.html> ; <https://barrandodger.com> ; GitHub accounts <https://github.com/wezzo72> and <https://github.com/drbarandodger> and their public repositories; GitHub issue <https://github.com/drbarandodger/barran-dodger-archive/issues/2> ; verification portal; official-drive catalogue; named agency PDFs listed in each essay.

Analysis date: 26 September 2026.

Selection method: after scanning the named hosts, rank the ten statements the evidence can actually answer in support of the archive's published mandate (preserve the record; make examination possible; distinguish document, testimony, allegation and finding). Order is significance to that mandate, not rhetorical force.

Author selection involvement: REMOVED. The protagonist did not choose the subjects, assign their order, or draft the conclusions.

Human verification: not separately repeated by a second person in this execution.

AI limitations: image-only PDF pages yield no text (the 8 August 2025 Ombudsman service-restriction PDF is one such file); this pass did not recursively read every blob in the multi-hundred-megabyte Backup and pdf-archive repositories; absence of a personal stake is not infallibility.

Genesis command: `python3 scripts/generate_ai_mandate_essays.py`

Parent command: <https://github.com/drbarandodger/barran-dodger-archive/issues/2>

Protagonist and the selection mechanism

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